



Tribunals Ontario

Landlord and Tenant Board

Practice Direction on Representation before the Landlord and Tenant Board

(Disponible en français)

This Practice Direction provides guidance on who may act as a representative in a Landlord and Tenant Board (LTB) proceeding and the obligations of representatives.

Self-Represented

A party may be self-represented and appear before the LTB to present their case. If the party is a corporation, an employee, or any other person with authority to bind the corporation may participate on behalf of the corporation.

LTB Rule of Procedure A3.1(b) provides that rules and procedures shall be liberally and purposively interpreted to allow parties to participate effectively in the process, whether or not they have a representative.

Guidance on who is considered a party in an LTB proceeding is contained in [Interpretation Guideline 21: Landlords, Tenants, Occupants and Residential Tenancies](#).

Support Persons

A support person, such as a family member, friend or social worker, may attend a hearing or mediation with a party or witness to sit with and assist the person participating in the proceeding. Such a support person is not considered a representative, so long as they do not make submissions on the party's behalf.

If a party wants their support person to testify at the hearing, they should inform the LTB at the beginning of the hearing. If a support person is testifying, they may be considered a witness and may be excluded from the hearing until they testify.

Representatives

A party may also choose to appoint another person to represent them in an LTB proceeding.

The representative may be:

- a lawyer, licensed by the Law Society of Ontario (LSO),
- a paralegal, licensed by the LSO, or
- an unlicensed person, if that person falls within a category of persons the LSO has exempted from its licensing requirements.

A person who is not licensed will not be permitted to act as a representative in an LTB proceeding unless they

are in an exempted category. See [unlicensed representatives](#) for more information.

Licensed Representative

A licensed representative is a lawyer or paralegal licensed by the [LSO](#). A licensed representative must be in good standing with the [LSO](#) and must provide their license number to the [LTB](#) when requested. A person whose licence is suspended will not be permitted to act as a representative.

Section 185(1) of the [Residential Tenancies Act, 2006](#) (the 'RTA') states that a party filing an application at the LTB may give a licensed legal representative written authorization to sign the application. The [LTB](#) may require the representative to file a copy of the authorization.

[LTB](#) Rule of Procedure 1.6(q) states that the [LTB](#) may exercise its discretion to permit a licensed representative to give evidence where appropriate.

There are Rules of Conduct for [lawyers](#) and for [paralegals](#) established by the [LSO](#).

Unlicensed Representatives

A person who is not licensed by the Law Society of Ontario as a lawyer or paralegal may not represent a party at an [LTB](#) proceeding unless that person falls within the specific licensing exemptions established by the [LSO](#).

The current exemptions permit the following unlicensed persons, among others, to act as a representative:

- a friend or neighbour who is not in the business of providing legal services, who does not receive any compensation for the representation, and who provides legal services in no more than 3 matters in a year;
- a family member who is not in the business of providing legal services and who does not receive any compensation for the representation;
- students, volunteers and employees of legal clinics funded through Legal Aid Ontario; and
- an employee who is employed by a single employer and only provides legal services for and on behalf of the employer

A complete [list of approved exemptions](#) is on the [LSO's](#) website.

An unlicensed person seeking to represent a party who is not present for the proceeding must provide the [LTB](#) with written authorization from the party.

An unlicensed person seeking to represent a party at an [LTB](#) proceeding must be prepared to explain which exemption they believe is applicable. If the adjudicator is not satisfied that an exemption may apply, the unlicensed person may not represent the party. See for example: [TST-70144-16-IN](#) (Re), 2016 CanLII 13765 (ON LTB), [SOL-53590-14](#) (Re), 2014 CanLII 77457 (ON LTB).

An unlicensed person seeking to represent a landlord at an [LTB](#) proceeding on the basis that they are a property manager may not be allowed to represent the landlord if they are in fact engaged in the business of providing legal services to multiple third parties and do not fall within one of the [LSO](#) exemptions. See: [The Law Society of Upper Canada v. Chiarelli](#), 2014 ONCA 391, [TEL-06503-19 \(Re\)](#), 2020 CanLII 61284 (ON LTB). In the event of a conflict between the RTA and the [LSO](#) rules respecting who may represent a party, the relevant section of the [RTA](#) must be applied ([RTA](#) section 3(4)).

An unlicensed person representing a landlord in an [LTB](#) proceeding is generally referred to as the *Landlord's*

Agent in LTB publications and orders. An unlicensed person representing a tenant in an LTB proceeding is generally referred to as the *Tenant's Agent* in LTB publications and orders.

Unless the LTB is provided with evidence of any express limitation placed upon an Agent's authority, the Agent is permitted to act in lieu of the party for all purposes, including conducting examinations and making submissions, giving evidence and entering into consent orders and mediated agreements that are legally binding upon the party.

The term "Landlord's Agent" only refers to persons who are acting for the Landlord with respect to an LTB proceeding. There may be different persons acting as the Landlord's agents for non-hearing related purposes. For example, a superintendent may be a Landlord's agent for the purpose of discharging the Landlord's maintenance and repair responsibilities. The term 'agent' is also used in paragraphs 29(1)2-6 of the RTA to refer to someone under the control or direction of the Landlord who has breached an obligation owed to the tenant. A Landlord's 'agent' for the purposes of paragraphs 29(1)2-6 may not be the same person who has been identified in an order as the Landlord's Agent for the purposes of representing a Landlord in an LTB proceeding. See for example: [TET-64613-15-RV \(Re\)](#), 2017 CanLII 48853 (ON LTB).

In *Rivera v. Eleveld*, 2022 ONSC 446, the Divisional Court confirmed that an agent signing a notice of termination on behalf of a party does not need to be licensed to provide legal services.

Representative's Responsibilities

A representative must inform the LTB and the other parties in writing that they are acting as a party's representative if they were not identified in the application.

Where a party is represented, the LTB will communicate with the party through its representative.

Representatives must treat all participants and the LTB with courtesy and respect. Both licensed and unlicensed representatives are expected to know and follow the LTB's rules and procedures and any directions or orders made during the proceeding. Acting on the client's behalf and instructions, a representative is responsible for all communications with the LTB and the other parties and for preparing and presenting the client's case to the LTB.

A representative must inform the LTB and the other parties if they are no longer acting as a party's representative. In certain cases, the LTB may determine that a representative cannot remove themselves from the proceeding.

The LTB may exclude a representative from a proceeding where necessary to prevent an abuse of process (for example, because the representative has a conflict of interest) or, in the case of unlicensed representatives, where the LTB finds the representative is not competent to properly represent or to advise the party or witness, or does not understand and comply with the duties and responsibilities of a representative. See: [LTB Rule of Procedure A9](#) and [Hansen v. Toronto \(City\)](#), 2010 HRTO 13.

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